BEFORE THE DEBTS RECOVERY TRIBUNAL AT COIMBATORE

I.A. NO. OF 2024

O.A. NO. 333 OF 2015

State Bank of India
Udhagamandalam Branch,
Commissioner Road,
Udhagamandalam,
The Nilgiris – 643001
Represented by its Branch Manager - Petitioner/Applicant

- Vs -

1. Mr.R.MuthuKaruppusamy,
   S/o.RakkiyaGounder,
   8/93, AvalChinnapalayam,
   Jameenkottampatti Post,
   Pollachi Taluk.

2. Mr.M.Soundarrajan,
   S/o.MayilsamyGounder,
   No. 8/91, AvalChinnampalayam,
   Jameenkottampatti Post,
   PollachiTaluk - 642001.

3. The Recovery Officer
   Debt Recovery Tribunal
   Coimbatore. - Respondents/Defendants

AFFIDAVIT

I, P. Ramesh Babu, S/o. K. Perumal aged about 38 years, Branch Manager, State Bank of India, Udhagamandalam Branch, Commissioner Road, Udhagamandalam, The Nilgiris, do hereby solemnly affirm and state as follows:

1. I am the petitioner herein and Branch Manager of the applicant bank. I know the facts of the case.

2. I submit that the 1st respondent herein availed an agricultural term loan of Rs.9,80,000/- on 27.10.2007 upon the Guarantee of 2nd respondent who in turn executed necessary Guarantee Agreement dated 27.10.2007. Besides, personal guarantee, the 2nd respondent also executed a confirmation letter dated 02.10.2007 by extending the collateral security already given by him in availing another loan by him as

SBI कृते भारतीय स्टेट बैंक
For State Bank of India
मुख्य प्रबंधक CHIEF MANAGER
उदगमंडलम शाखा Udhagamandalam Branch

a principal borrower to the loan availed by 1st respondent also. The said Collateral Security by way of equitable mortgaged given by him dated 05.10.2007 is duly registered as Doc.No.6983/2007.

3. At this juncture, the 1st respondent deliberately failed to re pay the loan availed by him despite repeated demands and the 2nd respondent also failed to honour his Guarantee for due repayment of loan availed by 1st respondent based upon his Guarantee. Hence, the loan account of 1st respondent became NPA 26.08.2010 and thereafter the Applicant bank filed the above O.A.No.333/2015 before this Honourable Tribunal for recovery of sum Rs.31,58,627/- with subsequent interest on date of O.A. which is contested by respondent nos. 1 and 2 herein.

4. At this juncture, the petitioner submits that the 2nd respondent also availed a separate loan (O.A.No.336/2015) from the petitioner herein under Agricultural Term Loan of Rs.9,80,000/- by executing necessary loan documents and also had given his immovable properties as mentioned in said O.A. as Collateral Security by creating necessary equitable Mortgage Deposit of title deeds and the said Memorandum of Deposit Title Deeds dated 05.10.2007 is registered as Doc.No.6983/2007. The said collateral security was also extended to the loan availed by 1st respondent herein which executed the loan availed by 1st respondent herein.

5. However, as the said 2nd respondent herein being principal borrower pertaining to his loan account, failed to repay the outstanding to bank, the Bank filed an O.A.No.336/2015 and the collateral security given by him which is also extended to the loan availed by the 1st respondent herein was brought for sale in O.A.No.336/2015 and accordingly the entire immovable property was sold to a third party by name Divya in an E-Auction held on 13.03.2018 for a sale price of Rs. 1.35 Crores. Whereas after sale, the outstanding of Rs.45,66,676/- (along with subsequent interest) payable by 2nd respondent in O.A.No.336/2015 was adjusted out of the sale price and thereby there remains a sum of Rs.89,33,324/- with Learned Recovery Officer.

6. At this juncture, the petitioner submits that the 2nd respondent herein being Guarantor for aforesaid loan availed by 1st respondent is duty bound to make good the loss caused by 1st respondent and also the liability of guarantor is co-extensive with that of principal borrower. The petitioner bank is also apprehending that the respondents herein are evading to pay the outstanding to petitioner bank pertaining to OA claim. That apart, the collateral security was given only by 2nd respondent is also extended to the aforesaid loan.

SBI कृते भारतीय स्टेट बैंक
For State Bank of India
मुख्य प्रबंधक CHIEF MANAGER
उदगमंडलम शाखा Udhagamandalam Branch

7. At this juncture, the 2nd respondent made attempts to withdraw the balance sum of 89,33,324/- retained by the Recovery Officer. Hence the applicant bank filed an application in I.A.No.2009/2018 in O.A.No.333/2015 seeking relief to attach the said balance sum before judgement for adjustment of the said sum if this O.A. is decreed.

8. Whereas, this Hon'ble Tribunal was pleased to pass order to implead the Learned Recovery Officer as party in I.A.No.2009/2018 in order to proceed further in the above interlocutory application. Accordingly the applicant bank filed an I.A.No.2775/2018 for impleading the Learned Recovery Officer as 3rd respondent in I.A.No.2009/2018 which was allowed.

9. Whereas, after the aforesaid sale, the outstanding of Rs.45,66,676/- payable by 2nd respondent in O.A.No.336/2015 was adjusted out of the auction sale price of 1.35 Crore Rupees and thereby there remained a sum of Rs.89,33,324/- with Learned Recovery Officer. Whileso, another sum of Rs. 60,95,333/- as on 31.03.2021 was outstanding in DRC No.180/2019 in O.A.No.335/2016 payable by this 2nd respondent to the applicant herein. Moreover, it was brought to the knowledge of the Hon'ble Tribunal that, apart from the said DRC 180/2019, there were few other O.A's pending as against this 2nd respondent and thereby the tribunal had issued show cause notice as to why the outstanding amount of Rs.60,95,333/- due in DRC No. 180/2019 as on 31.03.2021 along with subsequent interests till date of realization should not be adjusted from the balance sale proceeds of Rs.89,33,324/- in DRC No.14/2017 in O.A.No.336/2015. As there was no response from the certificate debtors for the said notices, the tribunal after issuing sufficient notices, vide its order dated 22.03.2022 had ordered the applicant bank to realize the outstanding of Rs.65,86,710/- (along with subsequent interest) as on 22.03.2022 which was due from the certificate debtors in DRC No.180 of 2019 from the excess balance amount of Rs.89,33,324/- lying in the records of RP 14/2017 in DRC No.14/2017 in O.A No.336/2015 and thus now a sum of Rs.23,46,614/- remains with the Learned Recovery Officer.

10. At this juncture, it is pertinent to note here that the respondent nos.1 and 2 herein were set exparte on 11.08.2017 in the above O.A and subsequently, petition was filed by them to set aside the exparte order against respondent no.2 was allowed on 12.03.2018 and the above O.A was adjourned all along these period without any progress. Due to this, the outstanding payable by the 1st respondent is mounting and the petitioner bank is put to risk of huge loss as they are not able to recover the entire outstanding till its realization if this situation prevails.

11. Whereas, at present the learned Recovery officer is now holding a sum of Rs.23,46,614/- being balance sum payable to 2nd respondent out of sale proceeds in O.A.No.336/2015 and O.A.No.335/2015 and at this juncture if above O.A is disposed at

SBI कृते भारतीय स्टेट बैंक
For State Bank of India
मुख्य प्रबंधक CHIEF MANAGER
उदगमंडलम शाखा Udhagamandalam Branch

the earliest, the petitioner could be able to realize the outstanding out of the sum held by 3rd respondent viz., Learned Recovery Officer. Since the matter is very urgent, the same may be taken up emergently or else the petitioner will be put to hardship.

Therefore it is prayed that this Hon'ble tribunal may be pleased to treat the accompanying petition as **EMERGENT** and pass such other further orders which this Hon'ble Tribunal deems fit according to the facts of this case and thus render justice.

SBI कृते भारतीय स्टेट बैंक
For State Bank of India

मुख्य प्रबंधक / CHIEF MANAGER
उदगमंडलम शाखा / Udhagamandalam Branch

PETITIONER

Solemnly affirmed and signed
before me at Coimbatore on
this the 23rd day of December, 2024.

MS 4571/24

ADVOCATE, COIMBATORE

BEFORE THE DEBTS RECOVERY TRIBUNAL AT COIMBATORE

I.A. No. OF 2024

O.A. No. 333 OF 2015

BETWEEN

PETITIONER/APPLICANT

State Bank of India
Udhagamandalam Branch,
Commissioner Road,
Udhagamandalam,
The Nilgiris – 643001
Represented by its Branch Manager

AND

RESPONDENTS/DEFENDANTS

1. Mr.R.Muthu Karuppusamy,
   S/o.Rakkiya Gounder,
   8/93, AvalChinnapalayam,
   Jameenkottampatti Post,
   Pollachi Taluk.

2. Mr.M.Soundarrajan,
   S/o.Mayilsamy Gounder,
   No. 8/91, AvalChinnampalayam,
   Jameenkottampatti Post,
   Pollachi Taluk - 642001.

3. The Recovery Officer
   Debt Recovery Tribunal
   Coimbatore.

AFFIDAVIT FILED ON BEHALF OF THE PETITIONER/APPLICANT

PRESENTED ON: .12.2024

ADDRESS FOR SERVICE

Mr. S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate, Enrolment No:595/1986,
85/12, 3rd Floor, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641 018.
0422-2200337.

BEFORE THE DEBTS RECOVERY TRIBUNAL AT COIMBATORE

I. A. No. OF 2024
O. A. No. 333 OF 2015

BETWEEN

State Bank of India
Udhagamandalam Branch,
Commissioner Road,
Udhagamandalam,
The Nilgiris – 643001
Represented by its Branch Manager - Petitioner/Applicant

- Vs -

1. Mr.R.MuthuKaruppusamy,
   S/o.Rakkiya Gounder,
   8/93, AvalChinnapalayam,
   Jameenkottampatti Post,
   Pollachi Taluk.

2. Mr.M.Soundarrajan,
   S/o.Mayilsamy Gounder,
   No. 8/91, AvalChinnampalayam,
   Jameenkottampatti Post,
   PollachiTaluk - 642001.

3. The Recovery Officer
   Debt Recovery Tribunal
   Coimbatore. - Respondents/Defendants

PETITION FILED UNDER SECTIONS 19 (25) OF THE RDDBFI AND BANKRUPTUCY ACT

For the reasons stated in the accompanying affidavit the petitioner herein prays that this Honorable Tribunal may be pleased to treat the petition as **EMERGENT** and pass such other further orders which this Hon'ble tribunal deems fit according to the facts of the case and thus render justice.

ADVOCATE FOR PETITIONER

BEFORE THE DEBTS RECOVERY TRIBUNAL AT COIMBATORE

I.A. No. OF 2024

O.A. No. 333 OF 2015

BETWEEN

PETITIONER/APPLICANT

State Bank of India
Udhagamandalam Branch,
Commissioner Road,
Udhagamandalam,
The Nilgiris – 643 001.
Represented by its Branch Manager

AND

RESPONDENTS/DEFENDANTS

1. Mr.R.Muthu Karuppusamy,
   S/o.Rakkiya Gounder,
   8/93, AvalChinnapalayam,
   Jameenkottampatti Post,
   Pollachi Taluk.

2. Mr.M.Soundarrajan,
   S/o.Mayilsamy Gounder,
   No. 8/91, AvalChinnampalayam,
   Jameenkottampatti Post,
   Pollachi Taluk - 642001.

3. The Recovery Officer
   Debt Recovery Tribunal
   Coimbatore.

PETITION FILED UNDER SECTION 19(25) OF THE RECOVERY OF DEBTS DUE TO BANKS AND FINANCIAL INSTITUTIONS ACT 1993

PRESENTED ON: .12.2024

ADDRESS FOR SERVICE

Mr. S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate, Enrolment No: 595/1986,
85/12, 3rd Floor, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641 018.
0422-2200337.